

10.	23CV1771	MADRONA VINEYARDS L.P. ET AL vs. VISMAN
Joinder of Indispensable Parties/Leave to Amend Cross-Complaint		

Plaintiffs are a trust and a business entity that operate from a landlocked parcel that has easements from the public roadway across the land of Defendants, also a business entity. Both Plaintiffs' and Defendants' businesses are visited by large numbers of people, which causes vehicle and pedestrian congestion on the easement that they both use for access by family, clientele and vendors. This Complaint was brought against Defendant based on allegations of blocking Plaintiffs' easement access and interfering with Plaintiffs' commercial signage in violation of Plaintiffs' rights to the use of the easements.

This matter was filed in October, 2023. Plaintiffs requested and received a Temporary Restraining Order against Defendants conduct that interfered with Plaintiffs' use of the easements on October 18, 2023, which was followed by a December 12, 2023, preliminary injunction addressing the same conduct by Defendants. Defendants filed a Cross-Complaint on June 21, 2024, requesting quiet title to access roads and rights to post signage for which Plaintiffs claim a prescriptive easement, and alleging trespass for Plaintiffs' use of those access roads, and unfair business practices and implied-in-fact contract as against Plaintiffs based on Plaintiffs' enjoyment of the benefits of Defendants' traffic management, road maintenance and advertising without compensating Defendants.

Trial of this matter is scheduled for July, 2026.

Request for Judicial Notice

Both parties have submitted requests for judicial notice of various judicial filings in litigation between the parties and their neighbors.

Judicial notice is a mechanism which allows the court to take into consideration matters which are presumed to be indisputably true. California Evidence Code Sections 451, 452, and 453 collectively govern the circumstances in which judicial notice of a matter may be taken. While Section 451 provides a comprehensive list of matters that must be judicially noticed, Section 452 sets forth matters which *may* be judicially noticed. A trial court is required to take judicial notice of any matter listed in section 452 if a party requests it and gives the other party sufficient notice to prepare to meet the request. Evidence Code § 453.

Evidence Code § 452(d) permits judicial notice of "records of (1) any court in this state or (2) any court of record of the United States." Accordingly, both parties' requests for judicial notice are granted.

Leave to Amend Cross-Complaint

Defendants request leave to amend the Cross-Complaint to add another neighboring property owner, Fudge Factory” as a party, asserting that “the factual basis for amendment was only recently discovered” and that granting leave to amend the Cross-Complaint “will promote a complete resolution of all related disputes in a single action.” Defendants propose to add causes of action against Fudge Factory for comparative fault, equitable indemnity and contribution.

Whether a court should allow amendment of a pleading is governed by several sections of the Code of Civil Procedure.

Section 473(a)(1) provides:

The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; . . .

Section 576 allows a court “at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.” Finally, Section 428.50 allows for leave to file a cross-complaint in the interest of justice “at any time during the course of the action.”

It is well established that “California courts ‘have a policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits where the authorization does not prejudice the substantial rights of others.’ [Citation.] Indeed, ‘it is a rare case in which “a court will be justified in refusing a party leave to amend his [or her] pleading so that he [or she] may properly present his [or her] case.” ’ [Citation.]” (*Douglas v. Superior Court* (1989) 215 Cal.App.3d 155, 158, 263 Cal.Rptr. 473.) Thus, absent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail. (*Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564, 176 Cal.Rptr. 704.)

Bd. of Trs. v. Superior Ct., 149 Cal. App. 4th 1154, 1163 (2007).

While a motion to permit an amendment to a pleading to be filed is one addressed to the discretion of the court, the exercise of this discretion must be sound and reasonable and not arbitrary or capricious. (*Richter v. Adams*, 43 Cal.App.2d 184, 187 [110 P.2d 486]; *Eckert v. Graham*, 131 Cal.App. 718, 721 [22 P.2d 44].) (2) And it is a rare case in which “a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case.” (*Guidery v. Green*, 95 Cal. 630, 633 [30 P. 786]; *Marr v.*

Rhodes, 131 Cal. 267, 270 [63 P. 364].) (3) If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion. (*Nelson v. Superior Court*, 97 Cal.App.2d 78 [217 P.2d 119]; *Estate of Herbst*, 26 Cal.App.2d 249 [79 P.2d 139]; *Norton v. Bassett*, 158 Cal. 425, 427 [111 P. 253].)

Morgan v. Superior Ct. of Cal. In & For Los Angeles County, 172 Cal. App. 2d 527, 530 (1959).

Indispensable Party

The necessity to amend the Cross-Complaint is based upon Defendants' asserted need to include an indispensable party, Fudge Factory. Defendant's recent discovery, in February, 2026, of Fudge Factory's activities affecting roadway access is described as a series of questions and answers in the course of a deposition of Madrona's owner, who indicated that Fudge Factory's patrons contribute to the pedestrian crowds that "overburden" the easement.

This issue is governed by Code of Civil Procedure § 389(a):

A person who is subject to service of process and whose joinder will not deprive the court of jurisdiction over the subject matter of the action shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (i) as a practical matter impair or impede his ability to protect that interest or (ii) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest. If he has not been so joined, the court shall order that he be made a party.

"The controlling test for determining whether a person is an indispensable party is, 'Where the plaintiff seeks some type of affirmative relief which, if granted, would injure or affect the interest of a third person not joined, that third person is an indispensable party.'" Save Our Bay, Inc. v. San Diego Unified Port Dist., 42 Cal. App. 4th 686, 692 (1996) (Citations omitted.) The California Supreme Court expressed this rule as follows: "Thus, '[a] person is an indispensable party [only] when the judgment to be rendered necessarily must affect his rights.'" (*Hartman Ranch Co. v. Associated Oil Co.* (1937) 10 Cal.2d 232, 262, 73 P.2d 1163.)" Olszewski v. Scripps Health, 30 Cal. 4th 798, 808–09 (2003).

The Cross-Complaint as currently drafted seeks to negate Plaintiffs' claims of prescriptive easements asserts that Plaintiff has committed trespass and violation of unfair competition laws, and that an implied-in-fact contract exists between Plaintiffs and Defendants such that Plaintiffs

should compensate Defendants for its traffic management and road maintenance services. None of these issues implicate Fudge Factory or its use of the easement.

The Complaint alleges that Plaintiff holds certain prescriptive easements across Defendants' property. Only "Easement 1" is shared by Fudge Factory. Plaintiff's "Easement 2" and prescriptive easements Plaintiffs claim for signage have no relationship to Fudge Factory. All of the claimed easements are located on Defendants' property, and have no relationship to the real property owned by Fudge Factory. The conduct that the Plaintiff's Complaint addresses is Defendant's intentional conduct in blocking easement access (posting "road closed" signs, placing physical obstacles in the road, demanding compensation for use of the easement and for hiring parking attendants, misdirecting traffic to parking places far from Madrona or prohibiting traffic to pass, misdirecting traffic, and removing signage) that amounts to intentional interference with Madrona's business, unfair competition, and trespass to Plaintiffs' chattel (removing Plaintiffs' signs), to the extreme that Plaintiffs' request punitive damages. Complaint, paras. 10, 30, 31, 32, 37, 39, 40, 42, 43, 44, 46, 152-162, 163-173, 174-186, 187-198, 199-212, 213-223, 224-234, 235-245, 253-261.

There are some allegations about "expanding its business in a reckless manner so that it overburdens Madrona's easements" Complaint, paras. 10, 30, 155. This is the lynchpin of Defendants' motion, which argues that because Fudge Factory also uses the easement across Defendants' property it also contributes to the congestion. This is not sufficient to make Fudge Factory an indispensable party. Every element of the Complaint without exception addresses Defendant's alleged *intentional* conduct. The fact that Fudge Factory happens to use the same shared easement in no way creates liability for contribution, indemnification or comparative fault for Defendant's alleged intentional wrongful conduct. Whether or not Fudge Factory also has rights to access "Easement 1" does not affect the legal determination of Plaintiffs' rights to access "Easement 1". Nothing about Fudge Factory's use of the easement is part of the analysis in determining whether Plaintiffs have trespassed on Defendant's property, have engaged in unfair competition or have an implied-in-fact contract with Defendants for road maintenance or traffic management.

The purpose of judicial economy would not be served by adding Fudge Factory to this litigation. To the contrary, Defendants and Fudge Factory are currently engaged in arbitration and another lawsuit over the same issues regarding Defendant's activities in "Easement 1". (21CV0266; 25CV2707). To add to this litigation the issues that are currently being arbitrated and litigated between different parties would result in duplicative legal processes and potentially conflicting outcomes.

It also strains credulity to accept Defendants' statement that it only became aware that Fudge Factory's use of the "Easement 1" road contributed to congestion on that road, as Fudge Factory and Defendants have been locked in interminable and continuing litigation over that very issue for nearly 25 years. Defendants' Reply Request for Judicial Notice No. 1.

Defendants' motion is not "timely made", as it comes more than two years after the litigation was filed, nearly two years since the Cross-Complaint was filed, and it was filed four months before the matter is set for trial. The motion will prejudice Plaintiff by re-opening discovery and almost certainly would result in delaying the trial date.

Nor will Defendants be "deprived of the right to assert a meritorious cause of action" if the motion is denied. There are not less than two active lawsuits pending between Defendants and Fudge Factory in which these issues could be inserted, and given their history, no reason to think Defendants would not be able to file additional actions for contribution, indemnity or comparative fault against Fudge Factory if the facts can support such an action. See, M&F Fishing, Inc. v. Sea-Pac Ins. Managers, Inc. (2012) 202 Cal.App.4th 1509, 1536.

TENTATIVE RULING #10: BOTH PARTIES' REQUESTS FOR JUDICIAL NOTICE ARE GRANTED. DEFENDANTS' MOTION TO AMEND THE CROSS COMPLAINT AND TO ADD AN INDISPENSABLE PARTY ARE DENIED.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.